SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NO. 549-26-2-4081-0020

2. CONTRACT NO.

3. AWARD/EFFECTIVE DATE

4. ORDER NO.

5. SOLICITATION NUMBER 36C25726Q0229

6. SOLICITATION ISSUE DATE 01-21-2026

7. FOR SOLICITATION INFORMATION CALL: a. NAME Crystal Carabajal

b. TELEPHONE NO. (No Collect Calls) 210-915-4076

8. OFFER DUE DATE/LOCAL TIME 02-06-2026 3:00pm CST

9. ISSUED BY CODE 36C257

Department Of Veterans Affairs
Network Contracting Office 17

5441 Babcock Road Ste. 302
San Antonio TX 78240

10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR:

- ☐ SMALL BUSINESS
- ☐ HUBZONE SMALL BUSINESS
- ☒ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
- ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
- ☐ EDWOSB
- ☐ 8(A)

NAICS: 316210

SIZE STANDARD: 1000 Employees

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE

12. DISCOUNT TERMS

☐ 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)

13b. RATING N/A

14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP

15. DELIVER TO CODE 36C549

Department of Veterans Affairs
North Texas VA Medical Centers
4500 S. Lancaster Rd

Dallas TX 75216

16. ADMINISTERED BY CODE 36C257

Department Of Veterans Affairs
Network Contracting Office 17

5441 Babcock Road Ste. 302
San Antonio TX 78240

17a. CONTRACTOR/OFFEROR CODE FACILITY CODE

TELEPHONE NO. UEI: EFT:

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY CODE

This is accomplished through the
Tungsten Network located at:
http://www.fsc.va.gov/einvoice.asp
This is mandatory and the sole method
for submitting invoices.

PHONE: (877) 353-9791 FAX: (512) 460-5540

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See CONTINUATION Page Safety Shoes / Boots - meeting OSHA Footwear Standards in accordance with Statement of Work (SOW). This acquisition is being conducted IAW FAR 12. Questions due by Friday, January 30, 2026 by 3:00pm to Crystal Carabajal via email crystal.carabajal@va.gov Quotes due by Friday, February 6, 2026 by 3:00pm to Crystal Carabajal via email crystal.carabajal@va.gov Refer to Instructions of Offerors and Evaluation Factors on pages 21 to 25 for additional details. (Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page

26. TOTAL AWARD AMOUNT (For Govt. Use Only)

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED.

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REF. ______ OFFER DATED ______. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)

30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)
Shawn R. Reinhart
Contracting Officer

31c. DATE SIGNED

Table of Contents

SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR: TBD

b. GOVERNMENT: Contracting Specialist, Crystal Carabajal
Department Of Veterans Affairs
Network Contracting Office 17
5441 Babcock Road Ste. 302
San Antonio TX 78240

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

[X] 52.232-33, Payment by Electronic Funds Transfer—System For Award Management

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly []

b. Semi-Annually []

c. Other [X] Upon Receipt

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

B.2 PRICE/COST SCHEDULE

ITEM INFORMATION

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	SAFETY BOOTS AND SHOES	300.00	PR	________________	________________
1001	SAFETY BOOTS AND SHOES Contract Period: Option 1 POP Begin: 03-26-2027 POP End: 03-25-2028	300.00	PR	________________	________________
2001	SAFETY BOOTS AND SHOES Contract Period: Option 2 POP Begin: 03-26-2028 POP End: 03-25-2029	300.00	PR	________________	________________
3001	SAFETY BOOTS AND SHOES Contract Period: Option 3 POP Begin: 03-26-2029 POP End: 03-25-2030	300.00	PR	________________	________________
4001	SAFETY BOOTS AND SHOES Contract Period: Option 4 POP Begin: 03-26-2030 POP End: 03-25-2031	300.00	PR	________________	________________
				GRAND TOTAL	________________

B.3 DELIVERY SCHEDULE

ITEM NUMBER	SHIPPING INFORMATION		QUANTITY	DELIVERY DATE
0001-4001	SHIP TO:	Department of Veterans Affairs North Texas Healthcare System \ Dallas 4500 S. Lancaster Rd. Dallas, TX 75216 USA	300.00	60 Days ARO
	MARK FOR:	John, Raymond A. (214) 857-3115 raymond.john@va.gov		

B.4 STATEMENT OF WORK

Working Footwear for Engineering and SCMS Service

1. **Requirements.** The Contractor shall provide mobile onsite shoe fitting sessions, purchase and delivery of professional working footwear meeting OSHA safety standards for the engineering, maintenance and logistic staff at Dallas, Garland and Bonham VA facilities. Additionally, the Contractor shall provide off-site fitting and ordering service for new employees and emergency replacement of damaged working footwear as required.

1.1 Onsite fitting shall be conducted at the following locations:

- Dallas VA Medical Center, at 4500 S. Lancaster Rd, Dallas, Texas 75216
- Garland VA Medical Center, 2300 Marie Curie Blvd, Garland, Texas 75042
- Sam Rayburn Memorial Veteran Center, 1201 East. 9th Street, Bonham, Texas, 75418

1.2 Onsite Mobile shoe fitting shall occur when there are 25 individuals needing safety footwear.

1.3 The Contractor shall provide all personnel, services, vehicles, transportation, tools, equipment, supplies, and any other item(s) necessary to perform and accomplish the mobile shoe fitting session at each location. All work shall comply with federal, state, and local regulations.

2. **Period of Performance (POP).** Period of performance will be from date of award for a period of 1-year plus 4 option years.

Base Year: March 26, 2026 – March 25, 2027
Option Year 1: March 26, 2027 – March 25, 2028
Option Year 2: March 26, 2028 – March 25, 2029
Option Year 3: March 26, 2029 – March 25, 2030
Option Year 4: March 26, 2030 – March 25, 2031

3. **Contractor Responsibilities.**

3.1 The Contractor shall coordinate with the COR during the life of the contract.

3.2 The Contractor, within 14-days of notice of award, shall provide a catalog (physical or online) of the footwear meeting price and OSHA requirement.

3.3 The Contractor, within 7-days of notice of award, shall provide a written schedule for their first visit to both the Dallas, Garland, and Bonham campus.

3.4 The Contractor shall be responsible for providing service to approximately 300 employees of the Dallas, Garland, and Bonham Engineering/Maintenance departments by providing working footwear which meets OSHA Safety Standards.

3.5 The basic requirement of this footwear as follows:

- Each VA employee is allotted a maximum of $250 to be paid by the Government for one (1) pair of personal safety working footwear per employee per year. **If an employee has more than one job category (i.e. plumber and carpenter), the Contractor shall provide the safety footwear that meets the requirements of both categories.**

- The Contractor shall provide a selection of footwear meeting the set price limit for each employee.
- The Contractor may provide footwear exceeding this cost limit; however, it shall be the employee responsibility to pay for any overage and the Contractors responsibility to maintain their own accounting/collection records.
- The Contractor shall ensure that the footwear is made from leather and goes above the ankle to provide support.
- Initial fitting and ordering shall be conducted on site at both the Waco and Temple Facility.
- These fitting dates shall be arranged through the COR and Department Head a minimum of (7) days prior to any visit. The Contractor shall provide the following on the day of fitting:
    - Provide samples of footwear that meet the $250 limit.
    - Provide samples of cushion insoles to be included in the $250 limit.
    - Provide samples in common sizes for trial fitting.
    - Provide samples of both men and women footwear.
    - Provide order documentation for both the individual and the COR/Department Head. This order documentation shall indicate the following:
        - Individual name, department and contact information.
        - Footwear Manufacture, size, and OSHA rating.
        - Any outstanding balance owed by the individual.
- After the initial orders are taken a bulk delivery shall be made at each site within 60 days. All individual orders shall be clearly identified with the individuals' name and department for distribution internally.

3.5.1 The minimum OSHA Requirements for each department is as follows:

- **Carpentry, Plumbing, HVAC, Roads & Grounds**
    - Crush resistant toe.
    - Puncture proof sole.
    - Slip resistant sole.
- **Electrical Shop**
    - Crush resistant toe.
    - Puncture proof sole.
    - Slip resistant sole.
    - Non-conductive.
- **Boiler Plant**
    - Crush resistant toe.
    - Puncture proof sole.
    - Slip resistant sole.
    - Chemical resistant.

3.6 **Periodic Off-site Service.** After the initial on-site service, new employees may be added, or damage may occur to footwear requiring individuals to secure new working footwear. The Contractor shall be responsible for the following:

- The Contractor shall anticipate approximately 30 replacement/new employee outside of the initial purchase.
- The Contractor shall provide a location/storefront to allow the fitting and selection of footwear meeting the initial requirements listed above.

- The selection and purchase of footwear at the Contractors' location shall be fulfilled on the same day but should take no more than 30-days to fulfill.
- The Contractor shall provide order documentation for both the individual and the COR/Department Head. This order documentation shall include the following:
- Individual name, department and contact information.
- Footwear Manufacture, size, and OSHA rating.
- Any outstanding balance owed by the individual.

4. **Government Points of Contact:** The Contractor shall contact the VA COR or Alternative COR prior to start of the work. The COR's will be responsible for all locations.

Contracting Officer's Representative (COR)
Hulena Shaw
214-857-3020
hulena.shaw@va.gov;

Alternative (COR)
Raymond John
214-857-3115
raymond.john@va.gov

5. **Government Holidays.** The Government observes the following holidays:

New Year's Day	January 1st
Martin Luther King's Birthday	Third Monday in January
President's Day	Third Monday in February
Memorial Day	Last Monday in May
Juneteenth	June 19th
Independence Day	July 4th
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Veterans Day	November 11th
Thanksgiving Day	Fourth Thursday in November
Christmas	December 25th

In addition to the days designated as holidays, the Government observes the following days:

- Any other day designated by Federal Statute
- Any other day designated by Executive Order
- Any other day designated by the President's Proclamation

The observance of such days by Contractor personnel shall not otherwise be a reason for an additional period of performance, or entitlement of compensation. In the event the Contractor's personnel work during the holiday, they may be reimbursed by the Contractor, however, no form of holiday or other premium compensation will be reimbursed either as a direct or indirect cost, other than their normal compensation for the time worked.

6. **Site and Facilities Access.**
- The Contractor shall coordinate access at Dallas, Garland, and Bonham VA Facilities with the COR a minimum 7-days prior to on-site service.

- The Contractor shall notify the COR/Branch Head upon arrival at either facility.
- At the end of the on-site service the Contractor shall notify the COR/Branch Head upon departure.

7. **Other Considerations.**

- The Contractor shall be responsible for the verification of all requirements for this project.
- The Contactor shall be qualified/certified in accordance with all manufacturer requirements/local codes/regulation.
- The Contractor shall provide adequate documentation verifying that the footwear meets or exceed all OSHA safety requirements.
- The Contractor shall perform work during normal business hours unless other wised noted by the COR. Normal working hours are 8:00 am - 4:30 pm, Monday - Friday.
- The Contractor's supervisor shall always be available to address any needs VA COR/Alternative COR may have during the period of performance.
- The Government will provide the Contractor a designated area at each facility for the initial on-site service.
- The Contractor shall ensure only authorized VA personnel enter the designated area. Each individual Government employee will present their identification badge for verification.
- The Contractor shall thoroughly clean the area using their own equipment, including vacuums, mops, buckets, wash rags, dust mops, etc. once their work is completed.
- The Contractor shall be responsible for the removal of waste materials/debris /equipment from this facility when complete.
- Employees requiring periodic or intermediate service off-site shall present their VA identification with authorization letter for service at the Contractor's facility.

7.1 **Working Conditions.** The Contractor will be provided a working space during their yearly site visit. The Contractor shall ensure only VA personal enter and are served in their designated area. Each VA employee shall present their identification badge for verification.

8. **Inspections.** The VA reserve the right to perform inspection of the Contractor's facility. Items that may be considered and reviewed are as follows:

- Means of Egress
- Means of Egress (includes Exits) free of obstructions and clearly marked.
- Fire Alarm, Fire Detection, and Fire Suppression Systems.
- Fire Alarm Pull Stations are unobstructed.
- Smoke Detector smoke caps in use or removed at end of the day.
- Sprinkler Heads are unobstructed.
- Housekeeping and Traffic Control
- Trash and debris are removed promptly.

9. **Workmanship.** All working footwear shall conform to OSHA standards. The Contractor shall correct all products not meeting these specifications at no additional cost to the Government.

10. **Warranty.** The Contractor shall provide a standard commercial warranty all footwear is free of defects.

(END OF STATEMENT OF WORK)
(END OF SECTION B)

SECTION C - CONTRACT CLAUSES

C.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):
https://www.acquisition.gov/far-overhaul
https://www.va.gov/oal/library/vaar/

FAR Number	Title	Date
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT 2018
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.246-71	REJECTED GOODS	OCT 2018

(End of Clause)

C.2 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed **6 months**. The Contracting Officer may exercise the option by written notice to the Contractor within **15 days.**

(End of Clause)

C.3 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within **15 days;** provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least **30 days** before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **five (5) years, six (6) months.**

(End of Clause)

C.4 VAAR 852.219-73 VA NOTICE OF TOTAL SET-ASIDE FOR CERTIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES (JAN 2023) (DEVIATION)

(a) *Definition*. for the Department of Veterans Affairs, ‘‘*Service-disabled Veteran-owned small business concern or SDVOSB*’’:

(1) Means a small business concern—

(i) Not less than 51 percent of which is owned by one or more service-disabled Veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled Veterans or eligible surviving spouses (see VAAR 802.201, Surviving Spouse definition);

(ii) The management and daily business operations of which are controlled by one or more service-disabled Veterans (or eligible surviving spouses) or, in the case of a service-disabled Veteran with permanent and severe disability, the spouse or permanent caregiver of such Veteran;

(iii) The business meets Federal small business size standards for the applicable North American Industry Classification System (NAICS) code identified in the solicitation document;

(iv) The business has been certified for ownership and control pursuant to 38 U.S.C. 8127, 13 CFR 128, and is listed as certified in the SBA certification database at https://veterans.certify.sba.gov/; and

(v) The business agrees to comply with VAAR subpart 819.70 and Small Business Administration (SBA) regulations regarding small business size, government contracting, and the Veteran Small Business Certification Program at 13 CFR parts 121, 125, and 128.

(2) The term ''Service-disabled Veteran'' means a Veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

(3) The term ''small business concern'' has the meaning given that term under section 3 of the Small Business Act (15 U.S.C. 632).

(4) The term ''small business concern owned and controlled by Veterans with service-connected disabilities'' has the meaning given the term ''*small business concern owned and controlled by service-disabled veterans*'' under section 3(q)(2) of the Small Business Act (15 U.S.C. 632(q)(2)).

(5) The term *"SDVOSB participant"* or *certified SDVOSB* means a small business that has been certified in the SBA Veteran Small Business Certification Program and listed in the SBA certification database (see 13 CFR 128.102).

(b) *General*. In order for a concern to submit an offer and be eligible for the award of an SDVOSB set-aside or sole source contract, the concern must qualify as a small business concern under the size standard corresponding to the NAICS code assigned to the contract and be listed as an SDVOSB participant in the SBA certification database as set forth in 13 CFR 128.

(1) Offers received from entities that are not certified SDVOSBs and listed in the SBA certification database at the time of offer shall not be considered.

(2) Any award resulting from this solicitation shall be made to a certified SDVOSB listed in the SBA certification database who is eligible at the time of submission of offer(s) and at the time of award.

(3) The requirements in this clause apply to any contract, order or subcontract where the firm receives a benefit or preference from its designation as an SDVOSB, including set-asides, sole source awards, and evaluation preferences.

(c) *Representation*. Pursuant to 38 U.S.C. 8127(e), only certified SDVOSBs listed in the SBA certification database are considered eligible to receive award of a resulting contract. By submitting an offer, the prospective contractor represents that it is an eligible and certified SDVOSB as defined in this clause, 13 CFR 121, 125, and 128, and VAAR subpart 819.70.

(d) *Agreement/LOS certification.* When awarded a contract action, including orders under multipleaward contracts, an SDVOSB agrees that in the performance of the contract, the SDVOSB shall comply with requirements in VAAR subpart 819.70 and SBA regulations on small business size, and government contracting programs at 13 CFR part 121 and part 125, including the non-manufacturer rule and limitations on subcontracting (LOS) requirements in 13 CFR 121.406(b) and 13 CFR 125.6. For the purpose of limitations on subcontracting, only certified SDVOSBs listed in the SBA certification database (including independent contractors) shall be considered eligible and/or ''similarly situated'' (i.e., a firm that has the same small business program status as the prime contractor). An otherwise eligible firm further agrees to comply with the required LOS certification requirements in this solicitation (see 852.219–75 or 852.219–76 as applicable). These requirements are summarized as follows:

(1) *Services*. In the case of a contract for services (except construction), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance to firms that are not certified SDVOSBs listed in the SBA certification database (excluding direct costs to the extent they are not the principal purpose of the acquisition and the SDVOSB/ VOSB does not provide the service, such as airline travel, cloud computing services, or mass media purchases). When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract.

(2) *Supplies/products*.

(i) In the case of a contract for supplies or products (other than from a non-manufacturer of such supplies), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not certified SDVOSBs listed in the SBA certification database. When a contract includes both supply and services, the 50 percent limitation shall apply only to the supply portion of the contract.

(ii) In the case of a contract for supplies from a non-manufacturer, the SDVOSB prime contractor will supply the product of a domestic small business manufacturer or processor, unless a waiver as described in 13 CFR 121.406(b)(5) has been granted. Refer to 13 CFR 125.6(a)(2)(ii) for guidance pertaining to multiple item procurements.

~~(3) *General construction*. In the case of a contract for general construction, the SDVOSB prime contractor will not pay more than 85% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not certified SDVOSBs listed in the SBA certification database.~~

~~(4) *Special trade construction contractors*. In the case of a contract for special trade contractors, no more than 75% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, may be paid to firms that are not certified SDVOSBs listed in the SBA certification database.~~

(5) *Subcontracting*. An SDVOSB subcontractor must meet the NAICS size standard assigned by the prime contractor and be certified and listed in the SBA certification database to count as similarly situated. Any work that a first tier SDVOSB subcontractor further subcontracts will count towards the percent of subcontract amount that cannot be exceeded. For supply or construction contracts, the cost of materials is excluded and not considered to be subcontracted. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the portion of the contract with the preponderance of the expenditure upon which the assigned NAICS is based. For information and more specific requirements, refer to 13 CFR 125.6.

(e) *Required limitations on subcontracting compliance measurement period*. An SDVOSB shall comply with the limitations on subcontracting as follows:

[X] By the end of the base term of the contract or order, and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(f) *Joint ventures*. A joint venture may be considered eligible as an SDVOSB if the joint venture complies with the requirements in 13 CFR 128.402 and the managing joint venture partner makes the representations under paragraph (c) of this clause. A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (d) of this clause will be performed by the aggregate of the joint venture participants.

(g) *Precedence*. The VA Veterans First Contracting Program, as defined in VAAR 802.101, subpart 819.70, and this clause, takes precedence over any inconsistencies between the requirements of the SBA Veteran Small Business Certification Program and the VA Veterans First Contracting Program.

(h) *Misrepresentation*. Pursuant to 38 U.S.C. 8127(g), any business concern, including all its principals, that is determined by VA to have willfully and intentionally misrepresented a company's SDVOSB status is subject to debarment from contracting with the Department for a period of not less than five years (see VAAR 809.406–2 Causes for Debarment).

(End of Clause)

C.5 VAAR 852.219-76 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—CERTIFICATE OF COMPLIANCE FOR SUPPLIES AND PRODUCTS (JAN 2023) (DEVIATION)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) [ ] In the case of a contract for supplies or products (other than from a nonmanufacturer of such supplies), it will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(ii) [X] In the case of a contract for supplies from a nonmanufacturer, it will supply the product of a domestic small business manufacturer or processor, unless a waiver as described in 13 CFR 121.406(b)(5) is granted. The offeror understands that, as provided in 13 CFR 121.406(b)(7), such a waiver has no effect on requirements external to the Small Business Act, such as the Buy American Act or the Trade Agreements Act.

(2) Manufacturer or nonmanufacturer representation and certification.

(i) [ ] *Manufacturer or producer*. The offeror certifies that it is the manufacturer or producer of the end item being procured, and the end item is manufactured or produced in the United States, in accordance with paragraph (a)(1)(i).

(ii) [ ] *Nonmanufacturer*. The offeror certifies that it qualifies as a nonmanufacturer in accordance with the requirements of 13 CFR 121.406(b) and paragraph (a)(1)(ii). The offeror further certifies it meets each element below as required in order to qualify as a nonmanufacturer.

[ ] The offeror certifies that it does not exceed 500 employees (or 150 employees for the Information Technology Value Added Reseller exception to NAICS code 541519, which is found at 13 CFR 121.201, footnote 18).

[ ] The offeror certifies that it is primarily engaged in the retail or wholesale trade and normally sells the type of item being supplied.

[ ] The offeror certifies that it will take ownership or possession of the item(s) with its personnel, equipment, or facilities in a manner consistent with industry practice.

(3) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(4) If VA determines that an SDVOSB/ VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

(i) Referral to the VA Suspension and Debarment Committee;

(ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and
(iii) Prosecution for violating 18 U.S.C. 1001.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract or to determine whether the offeror qualifies as a manufacturer or nonmanufacturer in compliance with the limitations on subcontracting requirement. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification

I hereby certify that if awarded the contract, _______ will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of ______.

Printed Name of Signee: ___________
Printed Title of Signee: _____________
Signature: ____________
Date: _______________
Company Name and Address: _______________

(End of Clause)

C.6 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

(END OF SECTION C)

SECTION E - SOLICITATION PROVISIONS

E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):
https://www.acquisition.gov/far-overhaul
https://www.va.gov/oal/library/vaar/

FAR Number	Title	Date
52.204-7	SYSTEM FOR AWARD MANAGEMENT	NOV 2024

(End of Provision)

E.2 ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

Submission of Questions and Proposals:
Questions: All questions shall be received by **Friday, January 30, 2026 at 3:00 pm CST.** All questions submitted for this solicitation shall be electronically sent to the following email addresses: crystal.carabajal@va.gov. Please title email with **36C25726Q0229 Questions**. Questions shall clearly identify which part of the solicitation. Questions received after the stated date and time, may be addressed at the discretion of the Contracting Officer. Answers to questions will be addressed via an amendment to the solicitation and posted to https://www.sam.gov.

Proposals: All proposals are due **Friday, February 6, at 3:00 pm CST** via e-mail only to crystal.carabajal@va.gov. Quotes shall be received on or before the date and time specified in Block 8 of the SF 1449. Please title email with **36C25726Q0229 Proposal Submission**. All proposals shall be submitted in three (3) volumes and labeled with RFQ Number, Offeror's Name, and the appropriate volume number. **All proposals shall be in a PDF format with the Solicitation Number and the Offerors name.**

Volume I: Technical. This volume shall contain the signed SF 1449 and any SF30's, along with the offeror's technical approach for fulfilling the requirements of the Statement of Work.

Volume II: Price. This volume shall contain the Price using B.2 Schedule of Services continuation section (B.2 Price Schedule). The price proposal shall be specific, complete in every detail, and separate from the technical proposal. Prices shall be evaluated for fairness and reasonableness and will be compared against competing proposals and the independent Government cost estimate. Prices shall be listed as an all-inclusive Firm Fixed Unit Price that covers in full those services under each CLIN.
Options. The Government will consider offers for award purposes by adding the total

price for all options to the total price for the basic requirement. **The total evaluated price will be based on the quantities identified in the schedule.** The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

Volume III: Representations and Certifications. All Offeror's are required to fill out and return all Clauses and Provisions that have fill-ins. Failure to return all fill-in Clauses and Provisions will make Offeror ineligible for award.

Volume IV: Past Performance: The Government will obtain past performance information from CPARS. **Offerors shall not submit no more than three (3) past performance information or references.** Emphasis will be on recent, relevant past performance. Recent is defined as work performed within the last 5 years. Relevant is defined as work similar in **size and scope** of the work described in the Performance Work Statement.

Volume	Title	Digital Copies	Maximum Pages
I	Solicitation, Offer and Award Documents, and Representations and Certifications	1	No page limit (PDF)
II	Technical Approach	1	25 (PDF)
II	Management and Staffing Approach	1	10 (PDF)
III	Price	1	No page limit (PDF and/or Excel)
IV	Past Performance	1	No more than 5 references

NOTE: Pages that exceed the required page limitations will not be evaluated. Additional pages over the maximum allowed will be removed or not read and will not be evaluated by the Government.

All proposals shall be valid for 90 days from closing date of solicitation. **The Government will not accept more than one (1) proposal per Offeror. (This supersedes FAR 52.212-1(e), *Multiple offers*.)**

A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

All proposals shall be valid for 90 days from closing date of solicitation. The Government will not accept more than one (1) proposal per Offeror.

SDVOSB's: Upon receipt of proposal, certification of status will be verified. The SBA's Small Business Search will be utilized to determine SDVOSB status and is located at: https://search.certifications.sba.gov/

Failure to submit a complete offer WILL result in removal from further consideration for award.

(End of Addendum to FAR 52.212-1)

E.3 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

Technical
Price
Past Performance
SDVOSB Status

(b) *Options.* The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

E.4 52.212-2 ADDENDUM to EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

The following Evaluation Criteria is incorporated into 52.212-2 as an addendum to the solicitation:

a. **Basis for Award.** **Basis for Award.** The Government intends to award a single Firm-Fixed-Price (FFP) contract resulting from this solicitation to the Technically Acceptable offeror meeting or exceeding the requirements for acceptability **in accordance with FAR Part 12.203(c). By submission of its offer, the offeror accedes to all solicitation requirements, including terms and conditions, representations and certifications, and technical requirements as listed within the PWS. Failure to meet a requirement or inability to perform or provide all services requested shall result in an offer being removed from further consideration. Offerors shall clearly identify any exception to the solicitation terms and conditions and provide complete accompanying rationale. The Government reserves the right to select a response that provides benefit to the Government that exceeds the minimum. The Government is not required to select a response that exceeds the minimum. Responses may exceed the minimum. Each response shall at a minimum meet the solicitation requirements. The Government is not requesting or accepting alternate proposals. The Contracting Officer reserves the right to award without exchanges. Exchanges are defined as seeking clarification.** Each initial offer should contain the offeror's best terms from a Technical Capability and Price standpoint.

b. Resulting Contract shall be based on the Contractor's Capabilities to provide the services or supplies listed in the Performance Work Statement reflected in Technical Capability (Factor 1) and the proposed Price (Factor 2).

c. Option Periods. The Government will consider offers for award purposes by adding the total price for all option periods to the total price for the basic requirement. **The total evaluated price will be based on the estimated quantities identified in the schedule.** The Government may determine that an offer is unacceptable if the option period prices are significantly unbalanced. Evaluation of option periods shall not obligate the Government to execute and fund the option periods.

EVALUATION FACTORS AND CRITERIA

Offerors shall address in detail their capabilities to perform services by describing their proposed approach to each factor. All factors will be considered based solely on the proposal provided, to the extent in which the proposal demonstrates a clear understanding of the requirements, and the contractor's ability to meet those requirements.

Factor 1 - Technical Capability: Offerors shall address in detail its technical capabilities by describing their proposed approach to each sub-factor. Offeror's technical proposal shall address the feasibility of meeting contract requirements with respect to providing the VA with a high level of confidence in successful performance. Rating will be based upon the extent to which the offer addresses each of the factors and sub-factor. All technical sub-factors will be evaluated based solely on the proposal provided, to the extent in which the proposal demonstrates a clear understanding of the requirements and problems involved in meeting or exceeding the standards for the various tasks, and to the extent in which uncertainties are identified and resolutions proposed. This factor will be used to determine the Offeror's ability to successfully manage the full range of contractual requirements, and background and relevant information regarding stability and strengths; each sub-factor is equally important.

Sub-Factor (a) - OSHA. Meet OSHA's minimum requirements for safety footwear.
Sub-Factor (b) – Shoe Material. Leather construction or equal material.
Sub-Factor (c) – Support. Over the ankle support.

Factor 2 - Price The total evaluated price will be based on the estimated quantities identified in the schedule.

Offerors shall submit their Price using the B.2 Price Schedule. The price proposal shall be specific, complete in every detail, and separate from the technical proposal. Line items for those option periods shall be sufficiently completed. Prices shall be evaluated for fairness and reasonableness and will be compared against competing proposals and the independent Government cost estimate. Prices shall be listed as an all-inclusive Firm Fixed Unit Price that covers in full those services under each CLIN.

(End of Addendum to 52.212-2)

E.5 52.216-1 TYPE OF CONTRACT (DEVIATION) (NOV 2025)

The Government contemplates award of a Firm-Fixed-Price contract resulting from this solicitation.

(End of Provision)

(END OF SECTION E)

(END OF SOLICITATION)